Subhasish Saha vs State (Nct Of Delhi) on 16 May, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 1195/2025
SUBHASISH SAHA
Through: Mr

versus

STATE (NCT OF DELHI)
Through: Mr
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CORAM:
HON'BLE MR. JUSTICE GIRISH KATHPALIA
ORDER

% 16.05.2025 [Physical Hearing/Hybrid Hearing (as per request)]

1. The accused/applicant seeks to be released on bail in case FIR No.275/2024 of PS Special Cell for offences under Section 420/120B IPC. The status report dated nil filed on behalf of State pertains to some other case. At request last opportunity is granted to file status report within three days.

2. In furtherance of order dated 27.03.2025, it is made clear by learned APP that there are no multiple victims of the cyber fraud in the present case. It is made clear by learned APP that only one victim is involved in the present case.

3. Broadly speaking, the allegation against the accused/applicant is that on his advice, the complainant de facto invested money in crypto-currency This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/06/2025 at 19:02:12 in the U.K. The said money was transferred from the bank account of the complainant de facto to the bank account of 12 business entities across the world. After earning profits in books, the complainant de facto called upon the co-accused Manidip Sarkar to close his account and pay the invested amount with profit. But instead of paying the profit, the co-accused raised a demand of certain charges on the investment. This, according to the State is a cyber fraud.

4. Learned APP referred to certain text chats on Zuka Tel in support of his contention that the accused/applicant induced the complainant de facto to invest money in crypto-currency. Learned APP clarifies that transactions in crypto-currency are not illegal in this country.

5. The said text chats are basically the calculations exchanged between the accused/applicant and the co-accused Manidip Sarkar. The said text chats are stated to be on group chats of four accused

persons namely Manidip Sarkar, the present accused/applicant and two Bangladeshi nationals.

6. After addressing arguments partly, learned APP requests for adjournment so that the learned standing counsel may personally appear and address. The core question is as to what is the basis of inferring criminality in this transaction.

7. As requested, relist on 29.05.2025.

GIRISH KATHPALIA, J MAY 16, 2025/ry Click here to check corrigendum, if any This is a digitally signed order.

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